

TIMBERHILL HOMEOWNERS'
ASSOCIATION
COMMUNITY HANDBOOK
RULES & REGULATIONS
May 2023

Table of Contents

INTRODUCTION	1
RULES AND REGULATIONS	2-9
Usage Rules and Regulations	2
Design Rules and Regulation.....	5
Procedures for Home Modification	6
Enforcement of Rules, Regulations, and fines	6-8
City of Corvallis Ordinances	8
Home Modification Request Form.....	9

STATEMENT OF PURPOSE

THIS HANDBOOK WAS APPROVED AND ADOPTED BY THE TIMBERHILL HOMEOWNERS' ASSOCIATION BOARD OF DIRECTORS ON May 31, 2023. ITS PURPOSE IS TO PROVIDE A SUMMARY OF THE MAJOR POINTS OF THE TIMBERHILL HOA COVENANTS.

ALL OWNERS WHO HAVE RENTAL PROPERTIES ARE RESPONSIBLE TO INFORM THEIR RENTERS OF THESE RULES AND REGULATIONS AND RENTERS MUST ABIDE BY THESE RULES AND REGULATIONS

OWNERS WILL BE HELD RESPONSIBLE FOR ANY FINES INCURRED BY THEIR RENTERS.

INTRODUCTION

This Community Handbook with the Rules and Regulations for TimberHill Homeowners' Association was prepared and distributed in 2023.

The purpose of this Handbook is to add clarity to the CC&R's and to simplify and clarify the Enforcement Procedures when a violation of the Rules and Regulations has been noted.

The Board of Directors urges each of you to review this Handbook. Owners who are renting their property are strongly encouraged to provide a copy of this Handbook to their renters so that they, too, are knowledgeable of these rules since the Owner/landlord will be held responsible and accountable for the renter's compliance with the Rules and Regulations.

We hope that this Handbook addresses any questions and concerns an Owner may have. Compliance of these Rules and Regulations by each Owner/renter will continue to make the Timberhill HOA a pleasant place to live and will help maintain the quality and atmosphere we all desire for our community.

If you should have questions, please do not hesitate to contact THHOA Board President for help and clarification. THHOA Board President can also help to direct your questions to a Board Member when appropriate.

Respectfully,
The 2023 TimberHill Home Owners' Association Board of Directors

TimberHill Home Owner's Association (THHOA)
Rules and Regulations

Introduction:

These Rules and Regulations were adopted in 2023 by a Resolution of the Board of Directors of the TimberHill Homeowners Association (THHOA). As allowed under the Declaration for TimberHill HOA (CC&R's) and the Bylaws, the Rules and Regulations were updated on May 31, 2023 by a Resolution of the Board of Directors.

As a reminder, the Declaration and Bylaws are the governing documents of the Association. These Rules and Regulations have been reworded so as not to conflict with the Declaration or Bylaws which are the ultimate guide for the Association.

Usage Rules and Regulations

1. **Occupation of Houses:** Homes in the THHOA Development are designated as residential housing
2. Occupation of identified THHOA duplexes is permitted meeting (CC&R) requirements. Other multiple family housing units are not permitted.
3. **Basketball Hoops:** Portable basketball hoops shall be permitted inside the curb line not obstructing the sidewalk property line of the home.
 - Basketball hoops shall not be left to stay in the street at any time and will be removed by the (THHOA) after initial notice to the Owner, at the Owner's expense.
4. **Boat Trailers, Utility Trailers, Vacation Trailers, and RVs:** Except as provided herein, trailers or motorhomes of any kind cannot be parked in the street or on the driveway of homes and, if parked behind the fence line, must be out of sight from the street.
 - Temporary parking of trailers will be allowed for a maximum of 72 hours total duration to allow for preparation for use and clean up after use.
 - House guests may park motorhomes in the street for a maximum 72 hours after prior notice to THHOA.
 - House guests must park their trailer within the boundaries of the property being visited so as not to affect adjacent neighbors.
5. **City Right Away:** Maintenance of area which borders individual properties such as parking strips, side yards or City Right of Way is the responsibility of that property owner. The Owner is expected to maintain these areas on a regular basis in a manner consistent with the standards of THHOA.
 - THHOA will be responsible for policing this requirement by notification, where necessary, to specific Owners.

- If adequate remedy is not taken per the THHOA enforcement of rules and regulations process stated herein, THHOA will contract maintenance, as required, at the expense of, and billed to the responsible property owner and may proceed with other enforcement procedures.

5. Landscaping: Each property owner is responsible for maintaining the owner's property landscaping in a manner consistent with the standards of THHOA.

- Yards are to be regularly mowed and weeded as required. It is the responsibility of the owner, for those homes under rental, to insure the property is adequately maintained. If necessary, the owner is expected to provide this service individually or by contract. Bushes and trees along the parking strips, sidewalks and City Right of Way need to be maintained and trimmed to allow pedestrians to pass safely and to give drivers a clear line of sight.
- Property maintenance includes keeping fences in good repair where required.
- All damage to fencing caused by an Owner/renter shall be the responsibility of the Owner/renter.
- THHOA shall be responsible to ensure adequate maintenance is done by the owner and notify owners when necessary. Failure to comply with standards for landscape maintenance will result in THHOA contracting the necessary services, as required, at the expense of and billed to the responsible Owner.

6. Auto and Vehicle Repair: Auto/vehicle repair of any nature is not allowed in the street at any time.

- Short-term repair, within a single day, is acceptable in an individual driveway provided all evidence of repair is cleaned up and removed by dusk that evening.
- Auto parts and repair equipment must be stored in a manner that is not visible from the street.
- Auto/vehicle repair inside the garage is acceptable provided it is not visible from the street.

7. Automobile parking in the street: Auto/vehicle parking in the street is acceptable within the guidelines established by the City of Corvallis.

- Non-operating or abandoned vehicles are not allowed, and vehicles shall be moved at least once, every 48 hours. Per City of Corvallis Ordinance 6.10.040.040.
- Violations will be brought to the attention of the Owner first, then to the City of Corvallis, if not rectified.
- Necessary vehicle removal of violators will be done in conjunction with the City of Corvallis at the owner's expense.

8. Conducting a Commercial Business from Home: To the extent that operating a business is allowed in a home by current zoning, a business conducted from a home in the Timber HOA must be done in a way, which is not visible to other Owners.

- Business signs or banners are not allowed.
- Regular delivery of goods by commercial trucks weighing more than 5 tons is not allowed.
- Customer parking associated with a business must be provided within the confines of Owner's property boundaries.

9. Parties and Celebrations: Parties and celebrations must be held in accordance with by laws and ordinances or the City of Corvallis.

- It is strongly recommended that the hosts of any event notify their neighbors beforehand and ensure that no undue hardship will be placed on them.
- It is strongly recommended that any complaints of disturbances be referred to the City of Corvallis Police Department by the complaining individual.
- Personal confrontations should be avoided.

10. Pet Control: Pet control is expected to meet the requirements of the City of Corvallis and its leash laws.

- Pets shall not be permitted to run loose or unattended. Dogs shall be on a leash or always confined to the owner's property.
- Pet owners are expected to clean up after their pets when necessary and dispose of pet waste in standard disposal containers.
- Property owners are responsible for ensuring their pets are adequately fenced and that fencing is properly maintained, or the pet is otherwise restrained within the owner's property boundaries.
- No animals, except a reasonable number of household pets shall be kept or raised. Pets shall not be bred or raised for commercial purposes.
- When necessary, THHOA shall be responsible for notifying the Owner, and, if necessary, referring the problem to the City of Corvallis.

11. Driving Habits: All Owners, their family members and guests are expected to use responsible driving habits within the confines of the TimberHill NO. 1's Community, compatible with the City of Corvallis traffic laws, to guarantee the safety of Owners, children, and pets.

- The speed limit for all traffic within the TimberHill NO. 1s residential area is 25 mph.
- Operators of any motorized vehicle, electric or gas, must be legally licensed to operate such vehicle.
- All motorized vehicles, electric or gas, shall meet noise restriction requirements established by the City of Corvallis.
- Motorized vehicles, electric or gas, shall not be operated on the sidewalks of the TimberHill NO. 1 Community.
- When necessary, Owners will be initially notified for the THHOA that they or a family member is not following safe driving habits. If necessary, the issue will then be referred to the City of Corvallis Police Department for resolution.

12. Garage Sales: may be held at an Owner's discretion.

13. Fires and Smoking: Fires are prohibited except in indoor fireplaces and wood stoves or in properly maintained gas or electric barbecues.

- Outdoor burning of trash or other materials and discarding of any during material, including cigarettes, smoking substances, live ashes, or briquettes is prohibited.

14 Solicitation: Solicitation within the borders of the Timber HOA offering, selling, enlisting support for, or promotion of any item of a commercial or non-commercial nature by means of personal contact, handout of handbills or advertising literature is not allowed.

- Distribution of newspapers by subscription is permitted.
- Notification of THHOA business is allowed to be communicated by door-to-door handout.
- Political campaigning is permitted

15 Advertising Signs: Signs advertising property for sale or rent, or for political campaigning are permissible under the following guidelines:

- One "For Sale" sign within the borders of the affected property is allowed provided the size does not exceed five square feet
- One "For Rent" sign with the borders of the affected property is allowed provided the size does not exceed five square feet
- Political signs may be displayed within\ the borders of a property. Signs are expected to be no larger than five square feet. Signs must be removed within 5 days of conclusion the political event.
- No signs of a political or other nature may be displayed on light standards, telephone poles or on any fencing for any reason.
- Signs displaying vulgarity or obscenities will be immediately removed by the THHOA.

16. Trash and Recycle Bins: Trash and Recycle bins must be stored out of sight from the street.

- Trash and Recycle Bins may be put on the curb the day before Trash Pick-up. They should be removed from the curb no later than the day following pick-up.
- Trash of any kind, which is visible from the street level, cannot be stored on any property.

17 TTHOA Community POOL Rules and Regulations: Owners and/or renters are required to review and follow the "Pool Rules". Owners and/or tenants who abuse the rules will be notified by the TTHOA board. TTHOA board will send out pool rules annually prior to pool opening. Pool is for member use only and their immediate family members. Immediate family is defined: 40 CFR § 170.305

"Immediate family is limited to the spouse, parents, stepparents, foster parents, father-in-law, mother-in-law, children, stepchildren, foster children, sons-in-law, daughters-in-law, grandparents, grandchildren, brothers, sisters, brothers-in-law, sisters-in-law, aunts, uncles, nieces, nephews, and first cousins. First cousin means the child of a parent's sibling, i.e., the child of an aunt or uncle."

Design Rules and Regulations

1. Painting-of-Houses: Painting of houses and staining of cedar shakes. Fencing shall be acceptable if done using non-intrusive color schemes used in the TimberHill HOA. Paint or stain colors will require the approval of the TimberHill Architectural Committee using a Home Modification Request form (a copy is included on the last page of this document). 2 x 3-foot sample of color should be painted on the house for review at the time the HMR is submitted. Staining of cedar

shakes, or fences shall stay in keeping with original stains. Variation from the original stains will require an approved HMR form.

2. Fences: All fences shall be finished in a natural wood color. Any variation requires the approval of the ARC using the HMR Form and a stain color sample. Design of new fences, or the design for replacement fences must be approved by the ARC prior to construction.
3. Antennas, Satellite Dishes and Solar Panels: Mounting of satellite dishes and solar panels will be permitted as required to provide a line-of-sight reception. Efforts should be made to keep mounting as inconspicuous as possible. Rooftop television antennas and/or Ham Radio antennas are not permitted.
4. External-Accessories-Storage: External accessories including storage, decks and balconies should not be visible from the street. Plans for balconies, decks and sheds which will be visible from street level must be submitted to THHOA-ARC via HOA Board President and approved before construction is started. Plans can be hand sketches or computer-generated renderings for submission to the BOD. Detailed architectural drawings are not required. Decorations displayed which are visible from the street level should be of acceptable taste as determined by the THHOA-ARC.

Procedures for Home Modification

Any Owners wishing to make a change alterations or improvement affecting the exterior appearance of a home that requires the approval of the THHOA-BOD must follow these procedures:

1. Submit a completed "Home Modification Request Form" with the Plans and Specifications (collectively referred to as "Plans") to the THHOA-ARC via the HOA President. A copy of this form has been provided at the back of this handbook.
2. The ARC will receive and review requests and may contact Owners for additional documentation if necessary.
3. The ARC has 10 days from the date it receives the request to respond to the Owner. In the event the Board fails to approve or disapprove such plans or to request additional information reasonably required within 10 days after submission, the Plans shall be deemed approved.
4. Considerations used when determining whether to grant a request will include, but are not limited to the following:
 - Whether the proposed changes or additions are harmonious with existing workmanship and design of existing structures.
 - Whether the changes or additions are consistent with surrounding structures, topography, and finished grade elevation.

THHOA Enforcement of Rules and Regulations

The Board of Directors (BOD) has the power to conduct Association business and to protect the community harmony by providing guidelines and a procedure for addressing conditions that are disruptive to that harmony. The Board is, therefore, authorized to collect timely assessment payments from owners and to enforce compliance by owners, their guests, family, and renters. In addition, the Bylaws, Rules and CC&R Regulations and other policies enacted in accordance with the governing documents, authorize the Board to assess monetary penalties against owners when there has been a violation to items within those documents.

1. As a general policy matter, the THHOA-BOD prefers to use the incremental, escalating enforcement steps outlined below in dealing with violations of the Declarations, Bylaws or Rules and Regulations in this handbook. The Association and the BOD, however, reserve the right to add, additional steps, omit steps or to follow different procedures as experience and judgement may dictate in a particular circumstance. In addition, The Association reserves all its rights and remedies to enforce the Declaration, Bylaws and Rules and Regulations in the Handbook and in dealing with infractions, including the right to take appropriate legal action, if the Association considers it necessary.
2. First Notification: Upon observation or notification of a violation of the Declarations, Bylaws and Rules and Regulations CC&R'S (collectively referred to as "DBR&R") by the Association, a notification letter will be sent to the violator/Owner regarding the violation. BOD will send the letter by USPS Certified Letter and regular First-Class Mail. The violator/Owner will be requested to commence specific actions necessary to come into compliance with the violated DBR&R within ten (10) days of the mailing of the letter.
3. Second Notification: If the violator/Owner has not complied within ten days of the mailing of the first notification letter, a second notification letter will be mailed to the Owner via USPS Certified Mail and regular First-Class Mail.
 - This second letter will notify the violator/Owner that the violator/Owner has another 10 days to complete the specified actions to come into compliance with the violated rule.
4. Final Notice: If the Owner still has not complied within 10 days of the mailing of the second violation notification letter, a FINAL NOTICE requesting complete compliance will be sent to the Owner via USPS Certified Mail and regular First-Class Mail,
 - The letter will notify the Owner that, if complete compliance does not take place within 10 days of the mailing of the FINAL NOTICE letter, a hearing will occur before the Board on a date specified in the FINAL NOTICE.
5. Hearing: The purpose of the hearing will be to impose a scheduled fine for the violation and giving the violator/Owner the opportunity to be heard and to present evidence and/or witnesses before a scheduled fine is imposed. If the Owner does not comply to the hearing the board shall proceed with the hearing. At the conclusion of the hearing, the Board will decide whether to impose the scheduled fine and will be stated in the minutes of the meeting. A notice of the Board's decision to impose the fine will be mail via USPS Certified Mail and regular First-Class Mail to the violator/Owner.
6. Scheduled Fines: A scheduled fine, if imposed, will commence to accrue one day after the hearing and will continue each day thereafter until the specified actions come into compliance with the

violated rule have been completed by the violator/Owner to the Board's satisfaction. A monthly invoice will be mailed to the Owner by the BOD stating the accumulation of fines.

- A late charge of (6% per annum) will accrue on the unpaid balance.
- In the event the balance surpasses \$500.00, a lien will be placed on the violator/Owner's home through the filing of the Claim of Lien in Benton County Real Property Records. The violator/Owner will be additionally assessed in the lien for filling fees, management fees, attorney's fees, and mailing fees the Association incurs in the fine assessment procedures, lien preparation and filing.
- In the event a lawsuit is filed to recover the fines fees and costs, and/or to foreclose or defend the lien, the violator/Owner shall pay all attorney fees and costs incurred at mediation, arbitration, trial and on appeal of the matter.

7. Scheduled Fines: Fines for specific violations of the Declarations, Bylaws, Rules, and Regulations concerning use and design are:

General/Use: \$25.00 per day

Design Specific: \$15.00 per day-refers to Design Rules and Regulations on page 5

8. Ordinances Listed below are the most common City of Corvallis Municipal Code pertaining to THHOA Association Members but not exclusive of other Municipal Code Ordinances.

1. 5.07 Chronic Nuisance Properties
2. 5.03.030.020.10 Sound Communication Devices
3. 5.03.050.020.03 Animal Waste
4. 5.03.080.030 Harassment
5. 5.03.050.040.04 Leash Law
6. 9.01.080.090 Occupancy Violation
7. 6.10.040.040 Prohibited Parking

TIMBERHILL HOMEOWNER'S ASSOCIATION HOME MODIFICATION REQUEST

DATE: _____

OWNER: _____

ADDRESS: _____

DAY PHONE: _____

EVENING PHONE: _____

EMAIL ADDRESS: _____

BRIEF DESCRIPTION OF MODIFICATION/IMPROVEMENT (Attach drawing and specifications of proposed modification and a photo of work area, if applicable.)

NAME OF COMPANY MAKING CHANGES: _____

STREET ADDRESS: _____

CITY/STATE/ZIP CODE: _____

CONTRACTOR'S LICENSE if applicable: _____

DO NOT WRITE ON LINES BELOW

DATE OF REVIEW: _____

DATE ADDITIONAL INFORMATION REQUESTED: _____

RECOMMENDATION OF BOARD OF DIRECTORS: _____

REQUEST APPROVED: _____ REQUEST DENIED: _____

DATE OF APPROVAL/DENIAL: _____